

PLANNING & DEVELOPMENT ACT 2000, as amended

RE: Planning Permission sought by, Mr Declan Butler for the construction of 16 No Dwellings consisting of; 8 No.2 storey detached 4 bed houses and 8 No.2 storey semi-detached 3 bed houses, new site entrance from the existing roads, new internal estate roads and footpaths, boundary treatments, landscaping and all necessary site works and site services at Coxtown, Dunmore East

Ref: No. 21/551

Decision: Pursuant to Planning & Development Acts, it is recommended for the reason set out in the First Schedule hereto, to grant permission for the said development in accordance with the said plans and particulars, subject to the conditions specified in the Second Schedule hereto.

First Schedule

Having regard to the nature of development proposed, the zoning provisions governing the area, and the type of development in the vicinity of the site, it is considered that, subject to compliance with the conditions set out in the Second Schedule, the proposed development would be in accordance with the proper planning and sustainable development of the area.

Second Schedule

Conditions

1. (a) The development shall be carried out in accordance with plans and particulars submitted to the Planning Authority on the 11th June 2021 as amended by the Further Information received on the 21st December 2021, except where altered or amended by conditions in this permission.
(b) This grant of permission relates to the construction of 16 no. residential units and shall be developed in accordance with the site layout details submitted on the 21/12/2021 (DRWG No PP-05-A refers),

Reason:

To clarify the documents to which the permission relates and for the proper planning and sustainable development of the area.

2. Prior to the commencement of any dwelling houses, the applicant shall carry out all necessary road improvement works as detailed in the submitted engineering reports and associated drawings (FF L01 & FF L02) submitted on the 21/12/2021 to the L4068 (Portally Road), along the full frontage of the site to Coxtown Crossroads. The works shall include the provision of a new surface water main and associated works, road widening and re-surfacing works, and the provision of a new combined public footpath/cycle path with lighting. The development shall be carried out in accordance with the requirements of Waterford City and County Council's Roads Section. Details of agreements reached shall be submitted for the confirmed written agreement of the Planning Authority.

Reason:

In the interests of traffic and pedestrian safety and to connect the development with the existing public footpath network.

3. The developer shall pay to the Planning Authority a financial contribution of €64,000 respect of public infrastructure and facilities benefiting development in the area of the Planning Authority that is provided or intended to be provided by or on behalf of the authority in accordance with the terms of the Development Contribution Scheme made under Section 48 of the Planning and Development Act 2000, as amended. The relevant Development Contribution Scheme was adopted by Waterford City & County Council on 12th February 2015. The contribution shall be paid prior to the commencement of development or in such phased payments as the Planning Authority may facilitate.

16no. Residential Units	Contributions Liable
Surface Water	€9,600
Recreation and Amenity	€3,200
Community Facility	€25,600
Transport	€25,600
Total Contributions	€64,000

Reason:

It is a requirement of the Planning and Development Act 2000, as amended, that a condition requiring a contribution in accordance with the Development Contribution Scheme made under Section 48 of the Act be applied to the permission.

4. (a) Prior to commencement of development, the developer shall lodge with the Planning Authority a bond of an insurance company, a cash deposit, or other security to secure the provision and satisfactory completion and maintenance, until taken in charge by the Planning Authority, of roads, footpaths, watermains, drains, car parks, public open space and other services required in connection with the development, coupled with an agreement empowering the Planning Authority to apply such security or part thereof to the satisfactory completion or maintenance of any part of the development(updated at the time of payment in accordance with changes in the Wholesale Price Index – Building and Construction (Capital Goods), published by the Central Statistics Office). The security to be lodged shall be as follows:

- (i) A cash sum of €142,000 (€8,875 x 16) to be applied by the Planning Authority at its absolute discretion if such services are not provided to its satisfaction.

- (b) A bond shall endure until completion of the development, or in accordance with the agreed phasing agreement, until the estate has been taken in charge by the Local Authority.

Reason:

To ensure an adequate standard of development and maintenance for the benefit of residents and until such time as the development may be taken in charge by the Planning Authority.

5. a) Prior to the commencement of the development as permitted, the applicant or any person with an interest in the land shall enter into an agreement with the planning authority (such

agreement must specify the number and location of each housing unit), pursuant to Section 47 of the Planning and Development Act 2000, as amended, that restricts all residential units permitted to first occupation by individual purchasers i.e. those not being a corporate entity, and/or by those eligible for the occupation of social and/or affordable housing, including cost rental housing.

b) An agreement pursuant to Section 47 shall be applicable for the period of duration of the planning permission, except where after not less than two years from the date of completion of each housing unit, it is demonstrated to the satisfaction of the planning authority that it has not been possible to transact each of the residential units for use by individual purchasers and/or to those eligible for the occupation of social and/or affordable housing, including cost rental housing.

c) The determination of the planning authority as required in (b) shall be subject to receipt by the planning and housing authority of satisfactory documentary evidence from the applicant or any person with an interest in the land regarding the sales and marketing of the specified residential units, in which case the planning authority shall confirm in writing to the developer or any person with an interest in the land, that the Section 47 agreement has been terminated and that the requirement of this planning condition has been discharged in respect of each specified housing unit.

Reason:

To restrict new housing development to use by persons of a particular class or description in order to ensure an adequate choice and supply of housing, including affordable housing, in the common good.

6. Within 8 weeks of the date of this order, the developer or other person with an interest in the land shall enter into an agreement in writing with the Planning Authority under Section 96 of the Planning and Development Act, 2000, as amended, in relation to the provision of social and affordable housing, in accordance with the requirements of the Local Authority's Housing Department. The Developer shall thereafter deliver on the agreement and within the timeframes agreed.

Reason:

In order to comply with the requirements of Part V of the Planning & Development Act 2000 as amended, and to comply with the requirements of the Housing Strategy and the Development Plan and in accordance with the proper planning and sustainable development of the area.

7. All excavated material shall, where practicable, be reused on site. Any surplus excavated material to be removed from the site shall be brought to an authorised facility.

Reason:

In the interests of environmental protection and the proper planning and sustainable development of the area.

8. (a) The developer shall be responsible for the provision of a traffic yield sign and the application of appropriate markings at all junctions within the estate road network. The locations of the signs and any road markings shall be agreed with the District Engineer prior to the commencement of development. Confirmation of agreement shall be copied to the Planning Section.
- (b) A wheel wash shall be employed at the entrance of the development for the duration of construction on site and shall be used by construction traffic exiting the site.
- (c) All roads shall have a gradient of no more than 2½ % for 7m at junctions or as otherwise agreed in writing with the District Engineer. Records of all agreements shall be submitted to the Planning Authority.
- (d) All works carried out on the public footpath or the public road shall require a Road Opening Licence & Hoarding Licence (if applicable). These licences are available from the District Engineer.
- (e) Any interference with or damage to the public footpath or road caused during the construction of the development shall be made good at the expense of the developer to the confirmed written satisfaction of the District Engineer. Evidence of all agreements shall be submitted to the Planning Authority within 1 month of said agreement(s).
- (f) Adequate drainage shall be provided to ensure that freestanding water is not formed on the roadway or footpaths. All road gullies within residential areas shall be of a lockable variety.
- (g) The development shall not interfere with the roadside drainage and will not discharge any storm water onto the public road.

Reason:

In the interests of traffic safety and the proper planning and sustainable development of the area.

9. The road layout, paths, kerbs, turning spaces, junctions etc shall be designed, constructed and completed in accordance with the Department of the Environment Community and Local Government publication "Design Manual for Urban Roads and Streets".

Reason:

In the interests of public safety and the proper planning and sustainable development of the area.

10. No development shall commence until such time as the developer has obtained a Connection Agreement from Irish Water for the provision of water services necessary to enable the proposed development.

Reason:

In the interests of the proper planning and sustainable development of the area.

11. Prior to commencement of the development final specification of surface water drainage infrastructure submitted in the plans and particulars on the 21st December 2021 shall be agreed in writing with the Roads Section, Waterford City and County Council. Details of agreements reached shall be submitted for the confirmed written agreement of the Planning Authority.

Reason:

To ensure satisfactory storm water drainage in the interest of proper planning and sustainable development.

12. (a) On completion of each respective phase of the development the developer shall provide the Planning Authority with a certificate stating that the development has been completed to such an extent as to render it capable of being taken in charge together with a complete set of as constructed drawings plus geo-referenced, as constructed, digital layout drawings (AutoCAD or similar) of the development which shall contain the exact location of all structures, footpaths, lamp standards, watermains, storm / surface water sewers, pipe networks, gullies, street furniture, boundary details, etc for confirmed written agreement.
- (b) The overall maintenance and upkeep of the estate (including public areas) shall be the responsibility the developer until such time as the estate has been taken in charge by the Waterford City and County Council.

Reason:

To provide a record of the onsite services and in the interests of the proper planning and sustainable development of the area.

13. All electricity, telephone, television, public lighting and other cables shall be laid underground in ducting in the public footpath or verge. In this regard, ducting shall be provided to facilitate the provision of broadband infrastructure within the proposed development.

Reason:

In the interests of visual amenity and the proper planning and sustainable development of the area.

14. All of the communal parking areas serving the residential units shall be provided with functional electric vehicle charging points, and all of the in curtilage car parking spaces serving the residential units shall be provided with electric connections to the exterior of the houses to allow for the provision of future electric vehicle charging points. Details of how it is proposed to comply with these requirements shall be submitted to and agreed in writing with Waterford City and County Council prior to commencement of development.

Reason:

In the interest of sustainable transportation.

15. (a) The design and layout of the public lighting shall be approved by Airtricity Utility Solutions (AUS) and submitted for the written agreement of the Planning Authority prior to the commencement of onsite development works.
- (b) The overall developer shall be responsible for the operating and maintenance costs of the public lighting until such time as the overall estate development is taken in charge by the Planning Authority.
- (c) No houses in each respective phase shall be occupied until the public lighting is turned on, is operational for that phase of the development and has been agreed in writing with the Planning Authority.
- (d) All public lighting shall utilize energy efficiency LED lighting and shall have a trimming set up of Switch on at 35 lux and off at 18 lux and street lighting lights to dim to 50% from 12 AM to 6AM. (Profile 2C dimming).

Reason:

In the interests of road and pedestrian safety.

16. (a) Prior to the commencement of development, proposals for an estate/street name(s), together with fingerpost directional signage (where required) shall be submitted to the Planning Authority for confirmed written agreement and shall also be subject to the consent of An Post. Any such proposals should generally reflect local Waterford and Irish place names, shall be in bilingual (Irish / English) format and/or shall be culturally and/or historically appropriate to the area. Use of the Irish language is recommended.
- (b) Nameplates of an approved type shall be erected at the entrance to the overall estate and on all internal roads. The location, design, height and materials of same, shall be erected at the entrance to each road in a location clearly visible from the adjoining roadway and shall be agreed in writing with the Planning Authority prior to the commencement of development.
- (c) All houses shall be provided with numbers which shall be visible from the adjoining roadway and shall be agreed in writing with the Planning Authority prior to the occupation of any of the units.

Reason:

To assist emergency and postal authorities in the interests of the proper planning and sustainable development of the area.

17. (a) The site shall be fully landscaped in accordance with the details submitted on 21/12/2021 (Landscape Masterplan DWG 21764-1-100 refers).
- (b) All landscaping shall be completed prior to the first occupation of the proposed development. The upkeep and maintenance of the landscaping and Public Open Space areas shall be the responsibility of the developer until such time as the estate has been taken in charge by the Local Authority.

Reason:

In the interests of safety and amenity and the proper planning and sustainable development of the area.

- 18.
- a) The roof finishes shall be blue/black slate unless another roof finish is agreed in writing by the Planning Authority prior to the commencement of development
- b) Where indicated on the drawings the external walls shall have a rendered finish
- c) Any stone to be used shall be submitted to and agreed acceptable in writing by the Planning Authority prior to the commencement of development. Details of the stone may be conveyed to the Planning Authority by the submission of photographic evidence. Only natural stone shall be used, and on no account shall reconstituted stone be used other than for cills or door surrounds.

Reason:

In the interests of visual amenity and integrating the development into the landscape.

19. No overhanging of, or trespass on, adjoining properties by eaves, gutters, foundations etc. shall take place on foot of this permission save with the written consent of the respective owners of these properties, a copy of which shall be submitted to the Planning Authority prior to any development commencing. Any damage caused to 3rd party property shall be made good by the applicant at their own expense.

Reason:

In the interests of existing residential amenity.

20. All proposed bathroom windows shall be glazed in obscure glass.

Reason:

In the interest of privacy and amenity of occupiers of adjacent houses.

21.

- a) The developer shall ensure that all construction works on site are carried out in a manner such that noise and dust emissions do not result in significant impairment of, or significant interference with, amenities or the environment beyond the site boundary.
- b) The developer shall ensure that material from the site is not spread or deposited on the public roadway and shall maintain the roadway in a clean, tidy and safe condition. Any damage to or interference with the roadside drainage shall be made good without delay at the developers expense, to the satisfaction of the Local Authority.
- c) No construction activity shall be carried out on Sundays, Bank Holidays or Public Holidays. From Monday to Friday, all construction and demolition activity giving rise to noise audible from the nearest habitable dwelling shall be restricted to the hours between 8.00a.m. and 6.00p.m. (inclusive) and to the hours between 8.00a.m. and 2.00pm (inclusive) on Saturdays (excluding Bank/Public Holidays).

Reason:

To prevent a noise nuisance or traffic hazard arising from the implementation of the permission.

22. The applicant shall during foundation construction take due care, in regard to any existing public services or other services and shall if encountered cease all works and inform the Local Authority or service provider so that an agreed provision for re-routing or protection of same can be made.

Reason:

In the interests of the proper planning and sustainable development.

23. Prior to commencement of onsite development works, a Construction Management Plan shall be submitted to the Planning Authority for its confirmed written agreement. This plan shall provide details of intended construction practice for the development, including onsite storage arrangements, hours of working, noise management measures, off-site disposal of construction and demolition waste/material, construction traffic, construction lighting, a scheme for dust and dirt control, road cleaning of access/egress routes to/from the site, vibration control, foul and surface water discharges and any other nuisance or significant interference with amenities or the environment beyond the site boundary.

Reason:

In the interest of the protection of amenities, the environment and public safety and for the proper planning and sustainable development of the area.

24. The applicant shall implement the roadside and all other boundary treatments proposed in the submitted site layout received on the 21st December 2021 (DWG No. PP-05-A) refers.

Reason:

In the interest of the protection of amenities, the environment and public safety and for the proper planning and sustainable development of the area.

25. Finished floor levels shall accord with the submitted details as per the site layout drawing submitted on 21st December 2021 (DWG No. PP-05-A) as further information, unless otherwise agreed in writing with the Planning Authority. A conveniently located Temporary Bench Mark shall be provided to facilitate checking of floor levels, details of which shall be submitted to the Planning Authority prior to development commencing.

Reason:

In the interests of the proper planning and sustainable development of the area.

Information Note - Public Water and Waste Water Networks Connections

On the 1st of January 2014 Irish Water became the statutory body with the responsibility for all water services, both water and waste water. The provision of a water services connection will be carried out by Irish Water in partnership with each Local Authority. Any persons seeking a connection to any of Irish Water's networks should make an application in the first instance directly with Irish Water via their website or Call Centre.

A Connection Agreement between Irish Water and the applicant will be required, prior to any connection being agreed, and will set out the conditions and charges to be applied to the connection. Details, including availability of application forms, are to be found on the Irish Water website. It should be noted that Planning Authorities can no longer levy water and wastewater development charges and that these will now be incurred as part of the connection charge, if applicable.

Since the 1st of January 2014 Irish Water has been applying Interim New Connection Charges (Infrastructure Fee and Connection Fee) that are the equivalent of both the water and waste water portion of Development Levies and Connection Fees previously charged by the Local Authorities.

The previous Local Authority Development Levy is now called an Infrastructure Fee and the previous Local Authority Connection Fee is now called a Works Fee. Both these fees are charged by Irish Water as they were in the Local Authorities on the 31st of December 2013.

Where planning permission was granted prior to the 1st of January 2014, Local Authorities will continue to bill and collect the water and waste water portion of Development Levies (Infrastructure Fee) as previously and subsequently transfer this to Irish Water. Irish Water will charge a Works Fee equivalent to the Connection Fees as they were in the Local Authorities on the 31st of December 2013.

Under the provisions of Section 55(1)(a) of the Water Services Act 2007 (the Act) it is an offence for a person to cause or permit the connection of a premises to the public water supply network, either directly or indirectly, or to otherwise take a water supply without the agreement of Irish Water. Similarly under the provisions of Section 61(1)(a) of the Act, it is an offence for a person to cause or permit the connection of a premises to the public waste water collection network, either directly or indirectly, without the agreement of Irish Water.

Nótaí Eolais - Uisce Poiblí agus Naisc Líonraí Fuíolluisce

Ar an 1 Eanáir 2014, tháinig Uisce Éireann i bhfeidhm mar chomhlacht reachtúil atá freagrach as gach seirbhís uisce, sé sin uisce agus fuíolluisce araon. Beidh soláthar an cheangail do sheirbhísí uisce á chur i gcrích ag Uisce Éireann, i gcomhpháirtíocht le gach Údarás Áitiúil. Ba chóir d'aon duine atá ag iarraidh ceangal le haon cheann de líonraí Uisce Éireann iarratas a dhéanamh, ar an gcéad dul síos, díreach go dtí Uisce Éireann tríd an suíomh gréasáin nó an Lárionad Glaonna.

Beidh Comhaontú Ceangail idir Uisce Éireann agus an t-iarratasóir ag teastáil, sula mbeidh aon comhaontú ar cheangal, agus leagfaidh sé seo amach na coinníollacha agus na muirir a bhainfidh leis an gceangal. Tá na sonraí, lena n-áirítear inúsáidteacht fhoirmeacha iarratais, le fáil ar shuíomh gréasáin Uisce Éireann. Ba chóir tabhairt faoi deara nach féidir le hÚdaráis Phleanála táillí forbartha d'uisce agus d'fhuíolluisce a thobhach a thuilleadh agus beidh na costais seo le tabhú anois mar chuid den táille ceangail, má bhaineann le hábhar.

Ón 1 Eanáir, 2014 tá Táillí Eatramhacha do Cheangal Nua (Táille Bhonneagair agus Táille Ceangail) curtha i bhfeidhm ag Uisce Éireann, atá comhionann leis an gcuid uisce agus fuíolluisce des na Tobhaigh Fhorbartha agus Táillí Ceangail a bhí mar tháillí ag na hÚdaráis Áitiúla roimhe seo.

Táille Bonneagair a tugtaí anois ar Thobhach Forbartha na nÚdarás Áitiúil a bhí ann roimhe seo, agus Táille Oibreacha a tugtaí anois ar an Táille Ceangail a bhí ag an Údarás Áitiúil roimhe seo. Gearrann Uisce Éireann an dá tháille seo, mar a bhí sna hÚdaráis Áitiúla ar an 31 Nollaig 2013.

Sa chás gur tugadh cead pleanála roimh an 1 Eanáir 2014, leanfaidh na hÚdaráis Áitiúla ar aghaidh ag gearradh agus ag bailiú an chuid des na Tobhaigh Fhorbartha (Táille Bhonneagair) a bhaineann le huisce agus le fuíolluisce mar a bhí roimhe seo, agus aistreofar iad seo anonn chuig Uisce Éireann ina dhiaidh sin. Gearrfaidh Uisce Éireann Táille Oibreacha ar coibhéis leis na Táillí Ceangal mar a bhí sna hÚdaráis Áitiúla ar 31 Nollaig 2013.

Faoi fhorálacha Alt 55(1)(a) den Acht um Sheirbhísí Uisce 2007 (an tAcht), is cion é do dhuine a bheith is cúis le, nó cead a thabhairt chun, áitreabh a cheangal leis an líonra do sholáthar uisce poiblí, go díreach nó go hindíreach, nó chun soláthar uisce a ghlacadh ar shlí eile, gan comhaontú idir iad féin agus Uisce Éireann. Mar an gcéanna, faoi fhorálacha Alt 61(1)(a) den Acht, is cion é do dhuine a bheith is cúis le, nó cead a thabhairt chun, áitreabh a cheangal leis an líonra do bhailiú fuíolluisce poiblí, go díreach nó go hindíreach, gan comhaontú idir iad féin agus Uisce Éireann.

